

SENATE BILL 1768

By Lamar

AN ACT to amend Tennessee Code Annotated, Title 2;
Title 4; Title 39; Title 43; Title 53; Title 57; Title 63;
Title 67 and Title 68, relative to medical cannabis.

WHEREAS, according to the National Conference of State Legislatures, thirty-seven states have a medical cannabis regulatory structure; and

WHEREAS, Tennessee has demonstrated a commitment to serving the healthcare needs of its citizens with compassion while honoring medical freedom and the broader constitutional protections of all Americans; and

WHEREAS, Tennesseans believe in product safety and the protection of minors; and

WHEREAS, the federal government has not demonstrated a willingness to violate Tenth Amendment guarantees in order for states to promulgate laws regarding intrastate cannabis production and dispensation, as evidenced by the passage of the Rohrabacher-Farr Amendment, which has defunded all such activity; and

WHEREAS, Tennesseans believe in free markets, which provide consumers with the highest-quality goods at competitive prices; and

WHEREAS, this General Assembly supports Tennessee farms and businesses to provide cannabis to patients safely and efficiently by significantly limiting illegal trade and denying special interests the opportunity to codify another de facto cartel system; and

WHEREAS, legalized medical cannabis tax revenue could support after-school and extracurricular youth programs, mental health and substance abuse support services, law enforcement education and impairment-recognition training, and community-based education and workforce development programs; now, therefore,

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. The Secretary of State shall direct county election commissions to place the following advisory ballot question on the ballot for the November general election in 2026:

Shall the State of Tennessee authorize a regulated medical cannabis program for qualifying patients, with a portion of cannabis tax revenue dedicated to after-school programs, mental health services, law enforcement training, and community cannabis education?

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.